

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY  
OF THE CITY OF CHEYENNE  
Office of City Clerk**

January 9, 2023

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn. Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Dr. Aldrich, and pursuant to support received by Mr. Johnson and Mr. White, items #24, #28(d) and #28(e) were removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Dr. Aldrich and Mr. Johnson, items #28(b) and #28(c) were removed from the Consent Agenda. Mr. Roybal moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on December 27, 2022. Motion (per Consent Agenda) carried.

[CA] Minutes from Sine Die Session of the Governing Body on January 3, 2023. Motion (per Consent Agenda) carried.

[CA] Minutes from the First Regular Meeting of the Governing Body on January 3, 2023. Motion (per Consent Agenda) carried.

Mayor Collins opened a Public Hearing to determine whether compliance of annexation conditions required by Wyoming Statute § 15-1-402 exist for about 10.7 acres of land located at 5908 Ridge Road, Laramie County, Wyoming (located southwest of the intersection of Ridge Road and Holland Court). Purpose of the hearing having been met, Mayor Collins closed the public hearing. Public comment was made by: Brad Emmons, AVI, Rebeca Murchie; John Cecil; and Peggy Escamilla. Comments were made by the following members of the governing body: Dr. Rinne and Mr. Roybal.

Mayor Collins opened a Public Hearing to determine whether compliance of annexation conditions required by Wyoming Statute § 15-1-402 exist for about 7.68 acres of land located in the N1/2N1/2, Section 12, T.13N., R.67W. of the 6th P.M., Laramie County, Wyoming (located east of Southwest Drive, north of I-80). Purpose of the hearing having been met, Mayor Collins closed the public hearing. Comment was made by the following member of the governing body: Dr. Aldrich.

Mayor Collins opened a Public Hearing for a transfer of location of retail liquor license application filed with the City Clerk's office for Poor Richard's, from 1808 O'Neil Ave. to 1507 Stillwater Ave., Unit D, Cheyenne, Wyoming. Purpose of the hearing having been met, Mayor Collins closed the public hearing. Mayor Collins announced the applicant has requested the application for transfer of location be withdrawn, therefore the application is not being referred to the Finance Committee.

ORDINANCE –3<sup>rd</sup> READING – Annexing to the City of Cheyenne, Wyoming, land located south of Atlantic Drive, east of Taft Avenue. Reporting for Public Services Committee, Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes”- all members of the governing body. (#4481)

ORDINANCE –3<sup>rd</sup> READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County HI Heavy Industrial and County A-2 Agricultural to MR Medium Density Residential for land located south of Atlantic Drive, east of Taft Avenue. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4482)

ORDINANCE –3<sup>rd</sup> READING – Annexing to the City of Cheyenne, Wyoming, land located south of 6<sup>th</sup> Street, east of College Drive. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4483)

ORDINANCE –3<sup>rd</sup> READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County P Public to P Public for land located south of 6<sup>th</sup> Street, east of College Drive. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4484)

ORDINANCE –3<sup>rd</sup> READING – Amending various sections of Chapter 15.08, 15.09, 15.10, 15.12, 15.16, 15.22, 15.24 and 15.26 of Title 15, Buildings and Construction, of the Municipal Code of the City of Cheyenne, Wyoming, updating specified building code requirements and fees adopted by the city. Reporting for Committee of the Whole, Mr. Johnson moved to approve on third and final reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson, Dr. Rinne and Mr. Segrave voting “no”. Public comment was made by Joe Patterson, Homes by Guardian, and Eric Adams, Gateway Construction. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Esquibel and Mr. Segrave. (#4485)

ORDINANCE –3<sup>rd</sup> READING – Amending Section 2.84.050, International Fire Code Board of Appeals, of Chapter 2.84, Miscellaneous Boards and Commissions, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, pertaining to the International Fire Code Board of Appeals. Mr. Johnson moved to approve on third and final reading, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson, and Mr. Segrave voting “no”. (#4486)

ORDINANCE –3<sup>rd</sup> READING – Amending various sections within Chapter 8.12, International Fire Code Adopted, of Title 8, Health and Safety, of the Municipal Code of the City of Cheyenne, Wyoming, updating the edition of the International Fire Code adopted by the City and further amending as specified. Mr. Johnson moved to approve on third and final reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson, and Mr. Segrave voting “no”. (#4487)

ORDINANCE –2<sup>nd</sup> READING –Creating Chapter 2.54, Boards and Commissions; Requirements Generally, of the Municipal Code of the City of Cheyenne, Wyoming, setting the minimum standards by which boards and commissions conduct public business. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Dr. Aldrich moved to postpone to January 23, 2023, seconded by Mr. Segrave. Motion failed. Voting “yes” – Dr. Aldrich, Mayor Collins, Mr. Laybourn, Mr. Segrave and Mr. White. Voting “no” – Mr. Cook, Mr. Esquibel, Mr. Johnson, Dr. Rinne and Mr. Roybal. Main motion failed. Voting “no” – Dr. Aldrich, Mayor Collins, Mr. Cook, Mr. Johnson, Dr. Rinne, Mr. Roybal, and Mr. White. Voting “yes” – Mr. Esquibel, Mr. Laybourn and Mr. Segrave. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Cook, Mr. Esquibel, Mr. Johnson, Mr. Laybourn, Dr. Rinne and Mr. White.

ORDINANCE –2<sup>nd</sup> READING – Amending Ordinance No. 4455 defining the Terms and Conditions of Employment for sworn officers of the Cheyenne Police Department for Fiscal Year 2022-2023 by updating the department’s pay plan schedule as specified in Exhibit B relevant to cost-of-living adjustments for city employees. Reporting for Finance Committee, Mr. White moved to approve on second reading, seconded by Mr. Esquibel. Motion carried. Voting “yes” - all members of the governing body.

ORDINANCE –1<sup>st</sup> READING – Annexing to the City of Cheyenne, Wyoming, land located southwest of the intersection of Ridge Road and Holland Court -- referred to Public Services Committee. (SPONSOR – MR. COOK)

ORDINANCE –1<sup>st</sup> READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County A-1 Agriculture and Rural Residential to NR-3 Neighborhood Residential-High Density for land located southwest of the intersection of Ridge Road and Holland Court -- referred to Public Services Committee. (SPONSOR – MR. COOK)

ORDINANCE –1<sup>st</sup> READING – Annexing to the City of Cheyenne, Wyoming, land located east of Southwest Drive north of I-80 -- referred to Public Services Committee. (SPONSOR – MR. COOK)

ORDINANCE –1<sup>st</sup> READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County LI Light Industrial to LI Light Industrial for land located east of Southwest Drive north of I-80 -- referred to Public Services Committee. (SPONSOR – MR. COOK)

ORDINANCE –1<sup>st</sup> READING – Vacating West 19<sup>th</sup> Street, west of Grant Avenue, City of Cheyenne, Laramie County, Wyoming (located south of Old Happy Jack Road, west of Missile Drive) -- referred to Public Services Committee. (SPONSOR – MR. COOK)

RESOLUTION – Authorizing a cost-of-living salary increase to eligible full-time employees of the City of Cheyenne (all city funds). Mr. White moved to adopt, seconded by Dr. Aldrich. Mr. White moved to amend by substitute dated December 29, 2022, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body. Main motion, as amended, carried. Voting “yes” – all members of the governing body. (#6295)

RESOLUTION – Declining the Community Development Block Grant (CDBG) entitlement grant between the City of Cheyenne and the U.S. Department of Housing and Urban Development (HUD). Mr. White moved to adopt, seconded by Mr. Johnson. Mr. Roybal moved to postpone to January 23, 2023, seconded by Mr. Segrave. Motion to postpone carried. Voting “yes” – all members of the governing body. Public comment was made by: Erin LeBlanc, Laramie County Senior Center Director; Amy Spieker, Laramie County Community Partnership Executive Director; Brenda Birkle, My Front Door Executive Director; Steve Ganison and Scott Hoversland, WCDA. [Clerk’s note: Mayor Collins recessed the meeting briefly at 7:32 p.m. and reconvened the meeting at 7:38 p.m. Mayor Collins relinquished duties of the Chair to President Johnson at 7:27 p.m. for one minute and resumed duties of the Chair at 7:28 p.m.]

[CA] RESOLUTION – Certifying compliance with Wyoming Statute § 15-1-402 for the City-initiated annexation of tracts of land situated in portions of Sunny Side Addition and Sunnyside Addition Second Filing, Section 12, T. 13 N., E. 67 W., 6<sup>th</sup> P.M., Laramie County, Wyoming. Motion (per Consent Agenda) carried. (#6296)

[CA] RESOLUTION – Approving Water and Sanitary Sewer Services, by Outside User Water and Sanitary Sewer Services Agreements, for UMC Properties, LLC, for North Range Business Park 3<sup>rd</sup> Filing: Lot 2, Block 9, Laramie County, Wyoming -- referred to Finance Committee.

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for the Maltese Cross, situated in the W1/2 of Section 16, Township 13 North, Range 66 West of the 6<sup>th</sup> P.M., and including a portion of public right-of-way dedicated with Sweetgrass, 7<sup>th</sup> Filing, City of Cheyenne, Laramie County, Wyoming (located south of East Murray Drive west and adjacent to Sweetgrass Drive) -- referred to Public Services Committee.

Memorandum of Understanding between the City of Cheyenne, Cheyenne Police Department, and the City of Laramie Police Department, for law enforcement extra-territorial assistance. Mr. White moved to approve, seconded by Mr. Roybal. Mr. White moved to postpone to January 23, 2023, seconded by Mr. Segrave. Motion to postpone carried. Voting “yes”- all members of the governing body.

Real Estate Purchase Agreement between the City of Cheyenne and James O. Woods, IV and Leah K. Woods, Trustees of the James O. Woods, IV, Living Trust dated July 19, 2017 and Leah K. Woods and James O. Woods, IV, Trustees of the Leah K. Woods Living Trust, dated July 19, 2017 for the purchase of real property generally located on the east side of Parsons Place and north of US 30, consisting of approximately 59,330 square feet (2017 Specific Purpose Option

Tax Fund). Mr. White moved to approve in an amount not to exceed \$195,000.00, seconded by Dr. Aldrich. Motion carried. Voting “yes”- all members of the governing body. (#7662)

Memorandum of Understanding between the Cheyenne Police Department, Memorial Hospital of Laramie County d/b/a Cheyenne Regional Medical Center, Laramie County Sheriff’s Department, Laramie County and Dr. Clair White of the University of Wyoming regarding the establishment and implementation of a Community-Based Law Enforcement and Behavioral Health Co-Response to behavioral health emergency calls within Laramie County (Wyoming Department of Health Grant). Mr. White moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes”- all members of the governing body. (#7663)

Donation Agreement between the City of Cheyenne and Union Pacific Railroad Company to accept a donation of selected heritage fleet railroad cars. Mr. White moved to approve, seconded by Mr. Esquibel. Dr. Aldrich moved to amend to not to exceed a total of nine (9) cars, seconded by Mr. Laybourn. Motion failed due to a tie vote. Voting “no” – Mr. Esquibel, Mr. Johnson, Dr. Rinne, Mr. Roybal, and Mr. Segrave. Voting “yes” – Dr. Aldrich, Mayor Collins, Mr. Cook, Mr. Esquibel, and Mr. White. Main motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich and Mr. White voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Esquibel, Mr. Laybourn, Dr. Rinne, Mr. Segrave and Mr. White. (#7664)

Agreement between the City of Cheyenne and Cheyenne Rail Hub, LLC, to provide for the temporary storage of railcars owned by the City of Cheyenne (2017 Specific Purpose Option Tax Fund and EDA Grant No. 05-79-06167). Mr. White moved to approve, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn, Dr. Rinne and Mr. White voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Segrave. (#7665)

[CA] Professional Services Agreement between the City of Cheyenne and AVI Professional Corporation, for the Storey Boulevard Extension Project Design and Bidding/Construction Services Project (2019-2022 1% Optional Sales Tax Fund) -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization (MPO), and BenchMark Engineers, P.C., for the Southwest Drive Corridor Plan (MPO Federal Funds) -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Dozzer, LLC, to authorize filing of platting application(s) for City-owned lands for the purpose of access and future development -- referred to Public Services Committee.

[CA] Sub-Award Agreement between the City of Cheyenne, Cheyenne Fire Rescue and the Memorial Hospital of Laramie County to provide grant funded community paramedicine services. (WY Department of Health, Community Emergency Medical Services Grant Program) -- referred to Finance Committee.

[CA] Consideration of Bid #E -10-23 for two (2) new four-door 2023 mid-size model SUVs, and one (1) new 2023 1-ton crew cab full size pickup truck (SWAT truck) for the Cheyenne Police Department (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (accepted bid from Ken Garff Cheyenne, Cheyenne, in an amount not to exceed \$229,382.14.

[CA] Consideration of Bid #S-8-23 for an agreement between the City of Cheyenne and Cheeney Landscaping, Inc., for the Cheyenne Cemeteries Irrigation System Replacement Project (2021 Specific Purpose Option Tax Fund) -- referred to Finance Committee.

No comments were made on the Voucher Report as presented.

Announcement was made that due to the Martin Luther King Jr. holiday, regularly scheduled City Council Committee meetings will instead be held follows: Finance Committee will meet Tuesday, January 17, 2023 at Noon and Public Services Committee will meet Wednesday, January 18, 2023 at Noon. Both meetings will be held at 2101 O'Neil Avenue, Room 104 and via electronic conference meeting.

Announcement was made that two Calcuttas benefitting Make-A-Wish Wyoming, will be held January 27 – January 29, 2023 at VFW 1881, 2826 E. 7<sup>th</sup> St., Cheyenne, WY and March 14 – March 19, 2023 at the Red Lion Hotel, 204 Fox Farm Rd., Cheyenne, WY (15% of proceeds go to the charity).

Public comment was made by Jason Sanchez under Other Business.

There being no further business to come before the governing body, the meeting was officially adjourned at 9:10 p.m.

Submitted by,

Kristina F. Jones,  
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle  
January 19, 2023